

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alyssa Rogowski	Team: Squad #07	CCRB Case #: 201902730	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 03/19/2019 9:20 PM	Location of Incident: 44 Precinct stationhouse	18 Mo. SOL 5/6/2021	Precinct: 44		
Date/Time CV Reported Fri, 03/22/2019 9:47 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 03/29/2019 11:13 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Corey Graves	12570	956696	044 PCT
2. SSA Kevin Grayson	02293	921393	044 PCT
3. An officer			044 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Jenkins	08673	952892	044 PCT
2. POM Onyx Salvador	22056	959962	044 PCT
3. POM Robert Knights	04781	956805	044 PCT
4. SGT Timothy Burke	03879	950130	044 PCT
5. PAA Angela Rowe		325757	44 PCT
6. PAA Kwanza Mcmillan		356097	44 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Corey Graves	Discourtesy: Police Officer Corey Graves spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Corey Graves	Force: Police Officer Corey Graves used physical force against § 87(2)(b)	B . Unfounded
C . SSA Kevin Grayson	Discourtesy: Sergeant Kevin Grayson spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . SSA Kevin Grayson	Abuse: Sergeant Kevin Grayson made a sexually suggestive remark to § 87(2)(b)	D . Unsubstantiated
E . An officer	Force: An officer used physical force against § 87(2)(b)	E . Unfounded

Case Summary

On March 22nd, 2019, § 87(2)(b) filed this complaint via call to IAB.

On March 19th, 2019 at around 9:20pm, § 87(2)(b) went to the 44th Precinct Stationhouse in the Bronx with her § 87(2)(b) son to pick up her car keys following the arrest of her fiancé, § 87(2)(b). After refusing to release the keys to her, Police Officer Corey Graves of the 44th Precinct allegedly told § 87(2)(b) to, "get the fuck out of the precinct" (**Allegation A: Discourtesy, unsubstantiated**). When she asked him if that was how he really spoke to people, PO Graves allegedly stated, "I don't give a fuck, that's how I talk" (**subsumed in Allegation A**). PO Graves then allegedly pushed § 87(2)(b) out of the 124 room while she was holding her son (**Allegation B: Force, unfounded**).

§ 87(2)(b) asked for a supervisor and Sergeant Kevin Grayson of the 44th Precinct approached. Sgt. Grayson allegedly told her that she needed to "get out of the fucking precinct" (**Allegation C: Discourtesy, unsubstantiated**). Sgt. Grayson then allegedly called her a "piece of shit" (**subsumed in Allegation C**) and allegedly stated that she would "be the next one gang banged" (**Allegation D: Abuse of authority, unsubstantiated**). As she was moving towards the main entrance door, an unknown Hispanic male police officer allegedly reached around Sgt. Grayson and pushed her (**Allegation E: Force, unfounded**).

The investigation received stationhouse footage and BWC capturing this incident (Board Review 01, 02).

Findings and Recommendations

Allegation A—Discourtesy: Police Officer Corey Graves spoke discourteously to § 87(2)(b)

Allegation B—Force: Police Officer Corey Graves used physical force against § 87(2)(b)

§ 87(2)(b) recalled that after introducing herself to PO Graves, she was led to the 124 room, where two women, identified as PAA McMillan and PAA Rowe, were working (Board Review 03, 04, 05). A short while later, PO Graves came to the 124 room with her key and asked § 87(2)(b) for her identification. § 87(2)(b) produced both her driver's license and the vehicle registration. PO Graves looked at her ID then stated he would still have to speak with § 87(2)(b) about whether he could give her the key. § 87(2)(b) told PO Graves that she did not understand why he needed to speak with § 87(2)(b) when she had just shown him the registration in her name. PO Graves told § 87(2)(b) that he was just following procedure and that she should not be questioning him about this. PO Graves then told § 87(2)(b) "Forget it, you need to get the fuck out of the precinct."

§ 87(2)(b) walked out of the 124 room into a small hallway that led to the front area of the stationhouse. PO Graves grabbed a body-worn camera from another officer and held it in § 87(2)(b) face. Throughout this time, PO Graves continued to curse at § 87(2)(b) telling her to, "Get the fuck out," and that she did not have the right to ask him about officers' process or policies. When she asked him if that was how he really spoke to people, PO Graves stated, "I don't give a fuck, that's how I talk." PO Graves then put his hand on the back of § 87(2)(b) upper right arm and applied pressure in one continuous shove, pushing her towards the front desk of the stationhouse.

After PO Graves put his hand on § 87(2)(b) she told PO Graves that she would not deal with him anymore and that she wanted to speak with a supervisor, but PO Graves continued to yell and curse. Sgt. Grayson then approached § 87(2)(b). One of the two women who had been working in the complaint room, identified by the investigation as PAA McMillan, pulled PO Graves away from § 87(2)(b) and stated, "You are about to get yourself in deep trouble." Sgt.

Grayson attempted to diffuse the situation and also asked PO Graves to step away. § 87(2)(b) and Sgt. Grayson moved into the lobby of the precinct, then § 87(2)(b) explained to Sgt. Grayson that she had been told she could pick up the key to her vehicle and that PO Graves had been disrespectful. Sgt. Grayson took the key from PO Graves and told § 87(2)(b) to wait in the lobby while he spoke with § 87(2)(b) about releasing the key to § 87(2)(b).

§ 87(2)(b) provided a phone statement (Board Review 06). When PO Graves approached him in the holding cell, he was informed that his wife, § 87(2)(b) was at the stationhouse trying to pick up the keys to his car. § 87(2)(b) and PO Graves argued, then after PO Graves walked away, § 87(2)(b) could hear officers yelling and knew that they were yelling at § 87(2)(b). § 87(2)(b) could not hear specifically what had been said.

The investigation obtained BWC from PO Onyx' camera that captures PO Graves' interaction with § 87(2)(b) (Board Review 02). When the footage begins, PO Graves can be seen standing in the doorway of the 124 room, engaging with § 87(2)(b). The audio begins at 30 seconds with PO Graves stating that he cannot release the property. After about one minute, Sgt. Grayson approaches § 87(2)(b). At the 2:12 mark in the clip, PO Graves appears to briefly place his hand on § 87(2)(b) back. It does not appear that any force was applied behind the touch. The footage ends with Sgt. Grayson telling § 87(2)(b) to wait, gesturing towards the front area of the stationhouse, and § 87(2)(b) going to stand behind the gate at the front.

On March 19th, 2019, PAA McMillan was assigned to work in the 124 room at the 44th Precinct stationhouse (Board Review 07). She recalled that from when she first observed § 87(2)(b) in the 124 room, § 87(2)(b) was frustrated and upset that the officers were not just giving her the property. PAA McMillan tried to calm § 87(2)(b) down, thinking that maybe as a female civilian herself, she could help § 87(2)(b) understand by explaining that the officers were just following procedure, but her attempts were unsuccessful. When PO Graves came to the 124 room and informed § 87(2)(b) that the officers would not be releasing the keys to her, § 87(2)(b) became very upset and she and PO Graves ended up arguing in the hallway outside the 124 room. PAA McMillan could see that § 87(2)(b) was becoming more and more upset and that PO Graves was not getting anywhere with her. As such, PAA McMillan approached PO Graves and told him to just walk away. PAA McMillan stated that PO Graves stayed professional with § 87(2)(b) and she did not hear PO Graves tell § 87(2)(b) to, "get the fuck out of the precinct," or, "I don't give a fuck." PAA McMillan did not observe any officers using profanity with § 87(2)(b). PAA McMillan did not see PO Graves touch § 87(2)(b) at any point nor did she see PO Graves push § 87(2)(b).

PO Graves recalled that after he was informed that § 87(2)(b) wanted to speak with him, he spoke with § 87(2)(b) who stated that under no circumstance should any of his property be released to § 87(2)(b) (Board Review 08). When he went to the 124 room and opened the door, § 87(2)(b) was already yelling and cursing and her volume was drawing attention from other officers. An officer standing nearby, PO Salvador Onyx, was equipped with a body-worn camera so PO Graves asked him to activate his camera to record the incident. As per his training, PO Graves had been instructed to activate a BWC during any situation that seemed to be escalating as a means of protecting both himself and anyone else involved. Because of § 87(2)(b) volume and demeanor, PO Graves felt that his interaction with § 87(2)(b) began at an escalated level. § 87(2)(b) demanded that PO Graves turn over her keys and PO Graves informed her that property found on § 87(2)(b) would be vouchered and that he could not turn over property. PO Graves did not think that he told § 87(2)(b) that § 87(2)(b) had refused to release his property to her, thinking that might be incendiary, and rather thought he left it at it is department policy to not release property.

Because of § 87(2)(b) escalating demeanor and because she had no further business being in the stationhouse, PO Graves asked § 87(2)(b) to leave the precinct. PO Graves was concerned that § 87(2)(b) was disrupting activity inside the stationhouse and particularly as § 87(2)(b) had a small child with her, he did not want the situation to escalate any further. PO Graves offered § 87(2)(b) his name, shield, and command then asked her several more times to leave the stationhouse. PO Graves did not tell § 87(2)(b) to, “Get the fuck out of the precinct,” or that he, “did not give a fuck.” PO Graves denied using any profanity with § 87(2)(b) and stated that his only interaction with § 87(2)(b) was captured on the BWC recording taken on PO Onyx’ camera. PO Graves did not hear any other officer use profanity with § 87(2)(b).

While speaking with § 87(2)(b) PO Graves may have brushed his hand against her back. PO Graves clarified that he did not independently recall making contact with her, rather he viewed PO Onyx’s BWC prior to his interview and saw in the video that it appears he makes contact with § 87(2)(b). PO Graves denied that he used any force with § 87(2)(b) and denied that he pushed her. Rather, he stated that he had been speaking with his hands and that any contact he made with her would have been accidental.

While PO Graves was speaking with § 87(2)(b) Sgt. Grayson intervened. PO Graves did not see how Sgt. Grayson’s conversation with § 87(2)(b) ended nor did he observe § 87(2)(b) exit the stationhouse as after Sgt. Grayson engaged § 87(2)(b) PO Graves walked away.

Sgt. Grayson recalled that on March 19th, 2019 at around 9:20pm, he was in the stationhouse and observed PO Graves having a conversation with § 87(2)(b) in the hallway (Board Review 09). The conversation seemed to be turning into an argument so Sgt. Grayson walked over to assist. § 87(2)(b) told him that she was trying to pick up keys for a vehicle from her husband, who had just been arrested. From the beginning, § 87(2)(b)’s demeanor was upset and she was yelling. By the time Sgt. Grayson approached, PO Graves was trying to get § 87(2)(b) to leave the stationhouse. Sgt. Grayson stated that while he did observe PO Graves touch § 87(2)(b) his motion was not a push and rather it was guiding her to walk down the hallway to the exit of the stationhouse. Around when Sgt. Grayson approached, PO Graves left the interaction and it was just Sgt. Grayson interacting with § 87(2)(b). Sgt. Grayson did not hear PO Graves tell § 87(2)(b) to, “Get the fuck out of the precinct,” nor did he hear PO Graves tell § 87(2)(b) “I don’t give a fuck that’s how I talk.” Sgt. Grayson did not hear PO Graves use any profanity with § 87(2)(b).

PO Graves, PAA McMillan, and Sgt. Grayson all deny that PO Graves used profanity during his interaction with § 87(2)(b) § 87(2)(g)

As such, it is recommended that **allegation A** be closed **unsubstantiated**.

It is undisputed that PO Graves made contact with § 87(2)(b) § 87(2)(g)

it is therefore recommended that **allegation B** be closed as **unfounded**.

Allegation C—Discourtesy: Sergeant Kevin Grayson spoke discourteously to § 87(2)(b)

Allegation D—Abuse of Authority: Sergeant Kevin Grayson made a sexually suggestive remark to § 87(2)(b)

§ 87(2)(b) recalled that after Sgt. Grayson intervened in her conversation with PO Graves, he told her to wait by the entrance gate in the lobby. When Sgt. Grayson returned to the lobby, he told her that she could not have the key and that she should go find her spare key. Sgt. Grayson and § 87(2)(b) went back and forth about the officers' behavior and why § 87(2)(b) could not get her key. Sgt. Grayson then told her that she needed to leave the stationhouse. § 87(2)(b) told him that she was not leaving until she was given her key. Sgt. Grayson told her that she could not have the key and that she, "needed to leave the fucking precinct." § 87(2)(b) told him that it was no wonder his officers behaved disrespectfully with the example he set and asked him, "Don't you have a mother, sister, daughter, is this how you would want them to be treated by officers?" After being prompted in her interview, § 87(2)(b) recalled that after she had asked Sgt. Grayson if he would want his wife, mother, daughter to be treated like this by officers, he stated, "Whatever, you're a piece of shit, you're the next one to get gang banged." Throughout this back and forth, § 87(2)(b) was starting to walk out of the stationhouse past the barricade and exited the stationhouse while Sgt. Grayson continued to curse at her.

Stationhouse footage captures that § 87(2)(b) did interact with Sgt. Grayson inside and outside the stationhouse but this footage does not have audio (Board Review 01). Throughout the footage, § 87(2)(b) can be seen gesturing angrily and she appears to be yelling at Sgt. Grayson.

Sgt. Grayson recalled that after he intervened in PO Graves' and § 87(2)(b) conversation, he told § 87(2)(b) to stand by the front gate and that he would go speak with § 87(2)(b) about the key. Sgt. Grayson had been informed by PO Graves that they were unable to release the keys because § 87(2)(b) had refused to give permission for officers to release the keys. Sgt. Grayson recalled, however, that when he spoke to § 87(2)(b) himself, § 87(2)(b) told him he did not have any keys and that § 87(2)(b) had them at the house. Sgt. Grayson approached § 87(2)(b) at the gate and told her that there were no keys to release. As such, § 87(2)(b) had no further business in the stationhouse and Sgt. Grayson asked her to leave. § 87(2)(b) refused to leave and Sgt. Grayson and § 87(2)(b) argued about her leaving the stationhouse. Throughout this exchange, § 87(2)(b) was yelling, but slowly moving to the exit of the stationhouse. Sgt. Grayson denied that he told § 87(2)(b) to, "leave the fucking precinct," and denied that he used any profanity with § 87(2)(b). Sgt. Grayson did not recall § 87(2)(b) making any statements about if he would want his mother or daughters to be treated in this manner by officers and denied that he told § 87(2)(b) "Whatever, you're a piece of shit you're the next one to get gang banged."

When asked if she observed any interaction between Sgt. Grayson and § 87(2)(b), PAA McMillan stated that the only time she saw them interact was while PO Graves and § 87(2)(b) were arguing in the hallway. PAA McMillan did not hear Sgt. Grayson tell § 87(2)(b) that she needed to, "leave the fucking precinct." PAA McMillan recalled that later that evening, she did see § 87(2)(b) walking away from the stationhouse, using such a level of profanity that PAA McMillan took note of it. PAA McMillan did not, however, see any interaction between § 87(2)(b) and Sgt. Grayson or other officers outside the stationhouse.

PO Graves denied that he heard any conversation between Sgt. Grayson and § 87(2)(b). PO Graves did not hear Sgt. Grayson tell § 87(2)(b) to, "get the fuck out," or that she was, "a piece of shit." PO Graves did not hear § 87(2)(b) asking Sgt. Grayson if he would

want his wife or daughters to be treated the way that she had been at the stationhouse. PO Graves did not hear Sgt. Grayson tell § 87(2)(b) that she was, “the next one to get gang banged.” PO Graves was not present when § 87(2)(b) was eventually escorted out of the stationhouse.

§ 87(2)(g)
As such, it is recommended that **allegation C** be closed as **unsubstantiated**.

§ 87(2)(g)
As such, it is recommended that **allegation D** be closed as **unsubstantiated**.

Allegation E—Force: An officer used physical force against § 87(2)(b)

§ 87(2)(b) stated that while she was moving from the barricade in front of the desk to the doors, she stopped by the main entrance door with her back to the door and again asked Sgt. Grayson to stop giving her a hard time and just give her the key. Another officer, a Hispanic male, reached either over or under Sgt. Grayson and pushed § 87(2)(b) on the torso, causing her to lean backwards on the main entrance door.

Stationhouse footage indicates that not only is Sgt. Grayson the only officer interacting with § 87(2)(b) by the main door, but that no officer makes contact with § 87(2)(b) while she was standing with her back to the main entrance door (Board Review 10).

Sgt. Grayson did not recall if other officers were participating in or assisting him with getting § 87(2)(b) to exit the stationhouse. While getting § 87(2)(b) to move towards the exit, Sgt. Grayson denied observing another officer push § 87(2)(b) and stated that other than PO Graves’ contact earlier in the incident, no other officer touched § 87(2)(b).

§ 87(2)(g)
it is recommended that **allegation E** be closed as **unfounded**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one prior CCRB complaint and has been named victim in four allegations (Board Review 11).
 - § 87(2)(b)
- PO Corey Graves has been a member-of-service for 5 years and has been a subject in five prior CCRB complaints and 12 allegations, none of which were substantiated. PO Graves is also party to ongoing investigation for CCRB 201901152. § 87(2)(g)
- Sergeant Kevin Grayson has been a member-of-service for 21 years and has been a subject in eight prior CCRB complaints and 14 allegations, none of which were substantiated. § 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- On August 26th, 2019, a request for any record of a Notice of Claim being filed in regard to this complaint was sent to the New York City Office of the Comptroller. The response will be added to the case file upon receipt.

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date